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TAB 6



Board of Education Report

File #: Rep-212-23/24, **Version:** 1

Define and Approve the Bridge Street Elementary School Critical Barrier Removal Project and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

March 12, 2024

Facilities Services Division and Division of Special Education

Action Proposed:

Define and approve the Bridge Street Elementary School Critical Barrier Removal Project (Project) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The budget for the proposed Project is \$390,099.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Project including budget modifications and the purchase of equipment and materials.

Background:

A need to accommodate students and staff with disabilities to access classroom buildings at Bridge Elementary School has been identified. Facilities staff were previously delegated authority to execute and expend Bond Program funds for Rapid Access Program (RAP) projects in response to an individual students' need for programmatic access. This program provides minor installments and adjustments to facilities to ensure a barrier-free learning environment by developing projects that do not require Division of the State Architect (DSA) approval and thus can be completed "rapidly" as well as have project budgets that do not exceed \$250,000. Initially the proposed barrier removal project at Bridge Elementary School was created under RAP, however after design development, the scope and higher budget requirements no longer meet the program parameters and therefore staff is presenting the Project's proposal to the Board for approval. The proposed Project has obtained DSA approval and will advertise for bid after Board approval.

The proposed Project provides upgrades to one building including installation of one new concrete ramp at the main entrance with retaining wall, new concrete stairs and railings, one parking lot upgrade, one accessible gate, and one intercom. Construction is anticipated to begin in the second quarter of 2024 and be completed in the fourth quarter of 2024.

Bridge Elementary School site spans 2.42 acres and is comprised of a traditional elementary school program UTK-5 grade. The building area is approximately 45,600 square feet and includes two multi-story permanent buildings and two relocatable buildings. The permanent buildings were constructed between 1922-1924. As of the 2023-2024 Electronic Capacity Assessment Review, the school serves approximately 170 students and currently 73 students have been identified as having a disability.

Bridge Street Elementary School is located within the boundaries of Region East and Board District 2 (Dr. Rocio Rivas).

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on February 29, 2024. The presentation that was provided is included as Exhibit C. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

Expected Outcomes:

Define and approve the Bridge Street Elementary School Critical Barrier Removal Project and adopt the proposed amendment to the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed Project.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to implement the proposed Project at Bridge Elementary School.

If the Board does not approve the proposal, staff will be unable to initiate the proposed Critical Barrier Removal Project, which is required for compliance with Section 504 of the Rehabilitation Act and the Americans with Disabilities Act (ADA).

Policy Implications:

The proposed action advances the Los Angeles Unified School District 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by providing accessibility enhancements at schools.

Budget Impact:

The budget, as currently estimated, for the proposed Project is \$390,099. The proposed Project will be funded with Bond Program funds earmarked specifically for ADA Transition Plan Implementation.

The project budget was prepared based on the current information known, and assumptions about the proposed Project scope, site conditions, and market conditions. The project budget will be reviewed throughout the bidding and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of the proposed Project.

Student Impact:

The proposed Project will remove barriers to program accessibility for students and qualified members of the community and ensure that all have an equal opportunity to access programs and activities at this campus.

Equity Impact:

Facilities works to coordinate Los Angeles Unified efforts under the ADA to ensure programs are accessible by students, parents, and community members with disabilities.

Issues and Analysis:

Both Title II of the ADA and Section 504 of the Rehabilitation Act of 1973 impose broad-reaching prohibitions against discrimination on the basis of disability. As to facilities, a key requirement for both the ADA and Section 504 is program accessibility: programs, benefits, services, and activities provided by public entities must be accessible to people with disabilities. This means that a qualified individual with a disability is not to be discriminated against because the entity's facilities are inaccessible; however, this does not necessarily mean that all facilities must be accessible. While both laws do require that newly constructed and altered facilities meet stringent accessibility requirements, they do not require that all existing facilities meet those standards, so

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long as the programs and services provided in those facilities are made accessible to people with disabilities. A program or service can be made accessible by relocating it, providing it in a different manner, or utilizing some other strategy to ensure that people with disabilities have an equal opportunity to benefit from the entity's programs and activities.

The Office of Environmental Health and Safety (OEHS) will evaluate the proposed Project in accordance with the California Environmental Quality Act (CEQA).

Attachments:

Exhibit A - Student Eligibility by Program

Exhibit B - BOC Resolution

Exhibit C - BOC Presentation

Informatives:

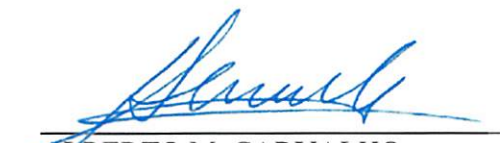
None

Submitted:

02/05/24

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent, Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

PRESENTED BY:


AARON BRIDGEWATER
Director of Facilities Asset Management
Facilities Services Division

Exhibit A - Student Eligibility by Program

Disability Category	Bridge Street Elementary School
Intellectual Disability (ID)	<11
Hard of Hearing (HH)	0
Deafness (DEAF) / Hearing Impairment (HI)	0
Speech or Language Impairment (SLI)	<11
Visual Impairment (VI)	0
Emotional Disturbance (ED)	<11
Orthopedic Impairment (OI)	<11
Other Health Impairment (OHI)	<11
Specific Learning Disability (SLD)	13
Multiple Disabilities (MD)	0
Autism (AUT)	41
Traumatic Brain Injury (TBI)	0
Grand Total	73

To ensure confidentiality of individual student results and compliance with Los Angeles Unified policy and State guidelines, data is suppressed if the number of students included in calculations is less than 11.

LOS ANGELES UNIFIED SCHOOL DISTRICT
SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

Margaret Fuentes, Chair
LAUSD Student Parent
D. Michael Hamner, FAIA, Vice-Chair
American Institute of Architects
Dr. Samantha Rowles, Secretary
LAUSD Student Parent
Robert Campbell, Executive Committee
L.A. Co. Auditor-Controller's Office
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Neelura Bell
CA Charter School Association
Chad Boggio
L.A. Co. Federation of Labor AFL-CIO
Jeffrey Fischbach
CA Tax Reform Assn.
Aleigh Lewis
L.A. City Controller's Office
Patrick MacFarlane
Early Education Coalition
Jennifer McDowell
L.A. City Mayor's Office

Brian Mello
Assoc. General Contractors of CA
Dr. Clarence Montecarlo
Tenth District PTSA
William O. Ross IV
31st District PTSA
Santa Ramirez (Alternate)
Tenth District PTSA
Connie Yee (Alternate)
L.A. Co. Auditor-Controller's Office
Vacant
AARP

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Services Joint Powers Authority

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2024-07

BOARD REPORT 212-23/24

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE BRIDGE STREET
ELEMENTARY SCHOOL CRITICAL BARRIER REMOVAL PROJECT AND AMEND THE
FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE
THEREIN**

WHEREAS, Los Angeles Unified School District (District) Staff proposes that the Board of Education (Board) define and approve the Bridge Street Elementary School Critical Barrier Removal Project (Project), as described in Board Report 212-23/24, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) accordingly; and

WHEREAS, District Staff also requests that the Board authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Project including budget modifications; and

WHEREAS, A need to accommodate students and staff with disabilities to access classroom buildings at Bridge Elementary School has been identified. Facilities staff were previously delegated authority to execute and expend Bond Program funds for Rapid Access Program (RAP) projects in response to an individual students' need for programmatic access. This program provides minor installments and adjustments to facilities to ensure a barrier-free learning environment by developing projects that do not require Division of the State Architect (DSA) approval and thus can be completed "rapidly" as well as have project budgets that do not exceed \$250,000. Initially the proposed barrier removal project at Bridge Elementary School was created under RAP, however after design development, the scope and higher budget requirements no longer meet the program parameters and therefore staff is presenting the Project's proposal to the Board for approval. The proposed Project has obtained DSA approval and will advertise for bid after Board approval.

WHEREAS, The proposed Project provides upgrades to one building including installation of one new concrete ramp at the main entrance with retaining wall, new concrete stairs and railings, one parking lot upgrade, one

RESOLUTION 2024-07**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THE BRIDGE STREET ELEMENTARY SCHOOL CRITICAL BARRIER REMOVAL PROJECT AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

accessible gate, and one intercom. Construction is anticipated to begin in the second quarter of 2024 and be completed in the fourth quarter of 2024.

WHEREAS, The budget, as currently estimated, for the proposed Project is \$390,099 and will be funded by Bond Program funds embarked specifically for ADA Transition Plan Implementation; and

WHEREAS, District Staff has determined that the proposed Project is necessary to improve student health, safety, and educational quality; and

WHEREAS, The District Office of General Counsel has reviewed the proposed Project and determined that it may proceed to the Bond Oversight Committee for its consideration for recommendation to the Board of Education; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee recommends that the Board define and approve this Critical Barrier Removal Project and amend the Facilities SEP, accordingly, as described in Board Report No. 212-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. Los Angeles Unified is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on February 29, 2024, by the following vote:

AYES: 11

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 3

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair



Bridge Street Elementary School Critical Barrier Removal Project

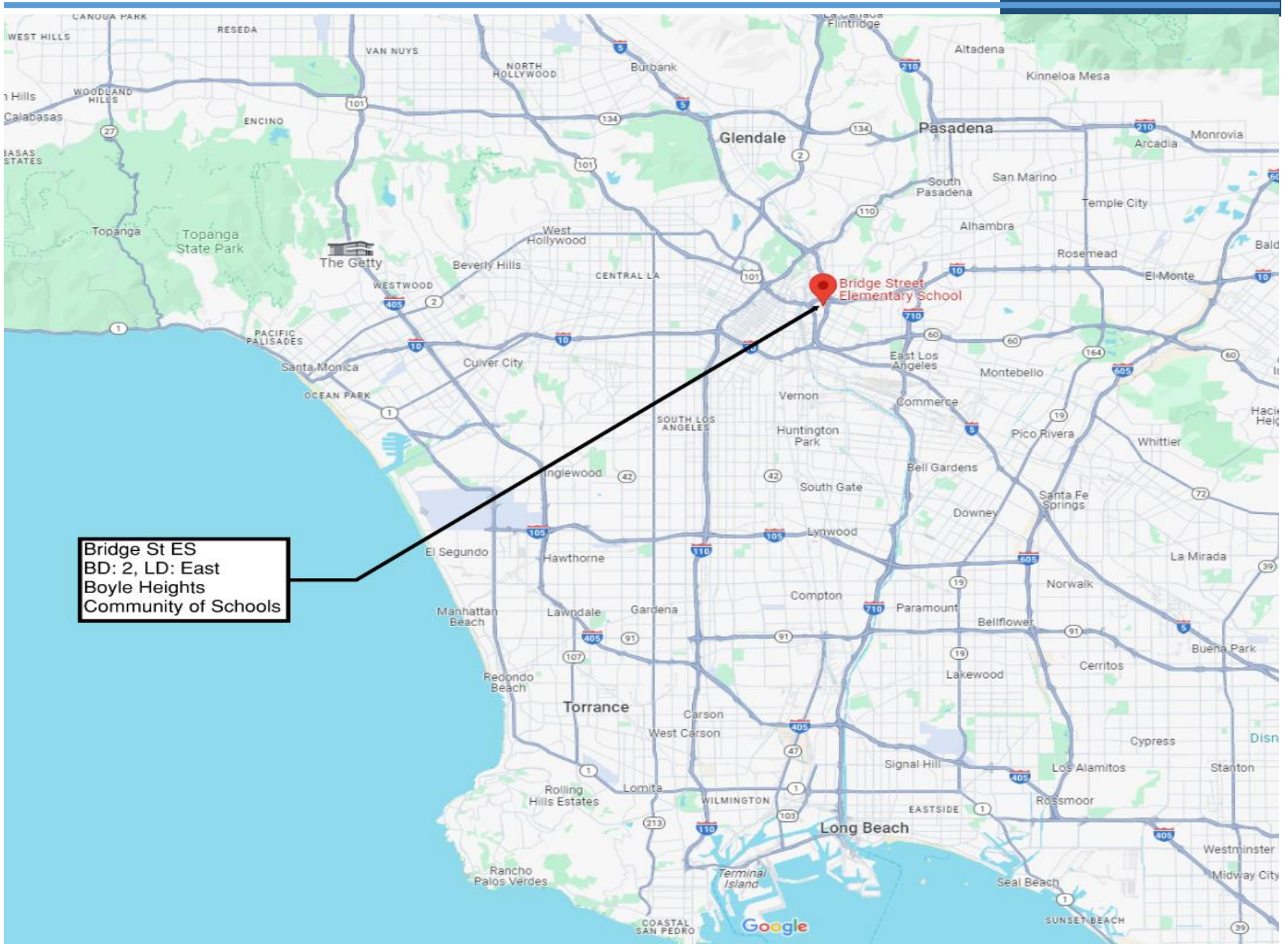


*Bond Oversight Committee Meeting
February 29, 2024*

- Identified need to accommodate students/staff with disabilities to access classroom buildings at Bridge Elementary School.
- Delegated authority to execute and expend Bond Program funds for Rapid Access Program (RAP) projects in response to an individual students' need for programmatic access.
 - Program provides minor installments and adjustments to facilities to ensure a barrier-free learning environment
 - Projects do not require Division of the State Architect (DSA) approval and can be completed “rapidly”.
 - Project budgets do not exceed \$250,000.
- Initially the proposed barrier removal project at Bridge ES was created under RAP, however after design development, the scope and higher budget requirements no longer meet the program parameters and therefore staff is presenting the Project's proposal to the Board for approval. The proposed Project has obtained DSA approval and will advertise for bid after Board approval.

Project Location Map

172



Student Eligibility by Program

Disability Category	Bridge ES
Intellectual Disability (ID)	<11
Hard of Hearing (HH)	0
Deafness (DEAF) / Hearing Impairment (HI)	0
Speech or Language Impairment (SLI)	<11
Visual Impairment (VI)	0
Emotional Disturbance (ED)	<11
Orthopedic Impairment (OI)	<11
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Grand Total	73

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Bridge Elementary School

174

Accessibility Level: Category 3

Campus Data:

2.42 acres

45,677 building square feet

Building dates 1922-1988

Historically Eligible

Scope :

1 new concrete ramp at main building's entrance with retaining wall, new concrete stairs and railings, and path of travel upgrades

Comments:

K-5 Program

Student Enrollment = 178

Project Budget: \$390,099

Project Schedule:

Construction NTP: Q2-2024

Construction Completion: Q4-2024



Questions ?